

RULES

TO BE OBSERVED BY

MASTERS AND PILOTS OF VESSELS,

ARRIVING AT THE

PORT OF PHILADELPHIA,

ESTABLISHED BY

THE HEALTH LAW,

AND

REGULATIONS OF THE BOARD OF HEALTH.

TO WHICH IS ANNEXED,

The Supplement to the Health Law,

Passed on the 2d day of April, 1821.

PHILADELPHIA:

PRINTED BY JACOB FRICK & CO.

No. 22, Walnut Street.

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RULES, &c.

I. From the first of June to the first of October, in every year, vessels arriving at the port of Philadelphia, from any foreign port or place, and every vessel arriving from any port or place within the United States, at which port or place the said vessel had only called in or touched upon her arrival from a foreign port, and vessels sailing under coasting documents, having on board goods, persons, baggage, or clothing from any foreign port or place, or any diseased person, before any of the cargo or baggage be landed, or any person who came in such vessel shall leave her, or any person, except the pilot, is suffered to come on board, (unless imminent danger of the loss of the vessel or lives of the crew shall render assistance necessary) shall stop at the Lazaretto, and there submit to the examination of the Lazaretto Physician and Quarantine Master.

Every vessel of the above description, under one hundred and fifty tons burthen, will come to anchor as near the Lazaretto as their draught of water and the weather will allow; and if of one hundred and fifty tons or upwards, may either come to anchor near the Lazaretto or in the outer channel, as near the west end of the island of Tinicum, opposite the Lazaretto, as her draught of water and the weather will permit—those preferring to be visited in the outer channel, will hoist a whiff at the topgallant-mast head, as a signal for the same.

A neglect or refusal to comply with the above, will subject the person so neglecting or refusing, to a fine of five hundred dollars.

II. From the first of October in every year, to the first of June in the succeeding year, every vessel arriving at the port of Philadelphia, either directly or indirectly from any foreign port or place, shall come to anchor in

the stream, opposite the city; and before any of the passengers, crew, cargo, or baggage are landed, shall receive the visit and submit to the examination of the Port Physician; and as a signal for the visit of the said physician, shall hoist a whiff at the foretopgallant mast head; vessels that arrive in the day time, will hoist the signal before they arrive at the lower part of the city, and those that come up in the night, will hoist the signal before sunrise next morning. *Every captain, pilot, or other person, hauling any vessel to the wharf, on her arrival as above, and before she is visited by the port physician, shall for each and every offence forfeit and pay the sum of two hundred dollars, unless it shall be made to appear, that there was at the time, imminent danger of the loss of such vessel, or of the passengers or crew thereof.*

III. Any master, or other person, on board any vessel, who shall knowingly deceive, or attempt to deceive the Lazaretto or Port Physician, or shall make false answers to their official inquiries, will be liable to a fine of two hundred dollars, and imprisonment at hard labour for five years.

IV. The certificates of health, granted by the Lazaretto or Port Physician, are to be presented at the health office, within twenty-four hours after the arrival and safe mooring of the vessel at the city under a penalty not exceeding three hundred dollars.

V. Masters of vessels, on presenting their certificates at the health office, shall pay to the health officer, the following sums, viz:

All coasting vessels, from any port or place in the United States,	\$2
between the river St. Croix, and the river St. Mary, (except from	50
between Sandy Hook and Cape Charles) for each arrival, during	
quarantine months,	

All coasting vessels, from between Sandy Hook and Cape Charles,	2 50
including the Bay and river Delaware, having on board foreign	
goods, for each arrival, during quarantine months,	

All American vessels, from any port or place in New Brunswick, Nova Scotia, Canada, or the islands or ports adjacent; the river St. Mary; the coast of Florida, bay of Mexico, including New Orleans, and parts adjacent, and from thence along the bay of Honduras, and coast of Terra Firma, as far as the river Amazon, including all the islands, generally denominated West India, Bahamas, or Bermudas, shall pay on arrival,	5 00
All American vessels arriving from any place in Europe, Western, Canary, or Cape de Verd Islands, and west coast of Africa as far as latitude 34 deg. S. and from any place in the Mediterranean, or from any place, from the river Amazon, inclusive, and round the coast of Brazil, as far as latitude 34 deg. S.	10 00
All American vessels, from any place beyond latitude 34 deg. S. or round cape Horn, or the Cape of Good Hope,	20 00
Foreign vessels shall pay twenty-five per cent. additional, unless otherwise regulated by any treaty.	
Prize vessels, taken by foreign armed vessels,	12 50
Prize vessels, taken by American vessels,	10 00
Public armed vessels, and privateers, each	6 00
Vessels that are visited in the outer channel at the Lazaretto, shall pay an additional sum of	5 00
For every passenger, not a citizen of the United States, (reckoning two children between the age of five and twelve years, as equal to one full passenger,)	1 00

VI. No master of a vessel, or other person whatsoever, shall remove any sick person, from any vessel, lying in the river Delaware, before the city of Philadelphia, the district of Southwark, or the township of the Northern Liberties, before such sick person has been visited by the Port Physician, and a written permit, granted by him for the purpose of such removal.

Any person neglecting or refusing to comply with the same, shall be subject to a fine of fifty dollars, and imprisonment for three months.

VII. Any master of a vessel, who shall knowingly receive, or employ, on board his vessel, any person eloping from the Lazaretto during quarantine, for every such offence, shall be liable to pay a fine of two hundred dollars.

VIII. No pilot, bringing a vessel to the Lazaretto in a healthy state, shall be obliged to perform quarantine, but the Lazaretto Physician shall grant such pilot a certificate, permitting him to proceed to the capes of Delaware, in order that he may prosecute his profession, but such pilot shall not, on any pretence, come into the city or adjacent districts, for twenty days from the date of such certificate, under the penalty of one hundred dollars, and one year's imprisonment.

IX. To prevent unnecessary delay, the commanding officer of every vessel will have prepared muster rolls of his crew and passengers, for the examination of the boarding officer.

X. Pilots are requested to keep a copy of the foregoing rules, and offer them for the perusal of the commanding officer of every vessel they bring up, and also to inform them, that every refusal or neglect to comply with the same, will be punished to the utmost extent of the law.

A SUPPLEMENT

To an Act, entitled "An act for establishing a Health Office, and to secure the City and Port of Philadelphia from the introduction of pestilential and contagious diseases, and for other purposes."

SECT. 1. *Be it enacted by the Senate and House of Representatives of the Commonwealth of Pennsylvania, in General Assembly met, and it is hereby enacted by the authority of the same,* That from and after the passing of this act, between the first day of June and the first day of October, every ship or vessel coming from any port or place southward of Cape Fear, bound to Philadelphia, shall be subject to the examination directed by the fourth section of the act to which this is a supplement; for every ship or vessel coming from any foreign port or place, and the master, commander or pilot of every such ship or vessel coming from any port or place southward of Cape Fear shall be subject to the same restrictions, and liable to the same indictment, prosecution and penalties, as by the said fourth section of the said act is prescribed for the master, commander or pilot of any ship or vessel coming from any foreign port or place. And the same duties shall be performed by the Lazaretto Physician and Quarantine Master, and the same oaths or affirmations shall be by them administered, first making known to the person interrogated the penalty imposed by the said act to which this is a supplement, which penalty is hereby extended to every person who shall give false answers, under oath or affirmation, to the questions proposed under the authority of this act. And the said Physician and Quarantine Master, and the master or captain of such ship or vessel, shall proceed in the same manner in all respects as is directed by the said fourth section of the act to which this is a supplement; and the Board of Health shall have the same power to determine and direct what measures shall be pursued, and the same shall be carried in like manner into execution.

SECT. 2. *And be it further enacted by the authority aforesaid,* That from and after the passing of this act, between the first day of June and the first day of October, every ship or vessel coming from a port or place in the United States, bound to the port of Philadelphia, and from which ship or vessel shall have been, within thirty days then next preceding, unladen, the whole or a part of the cargo or baggage, brought in the said ship or vessel from some foreign port or place, every such ship or vessel shall be liable and subject to all the rules, regulations and restrictions of the said fourth section of the said act to which this is a supplement, and shall be examined and treated as well the vessel itself, as the cargo, crew, passengers and baggage on board, in the same manner as if such ship or vessel had brought the same cargo, crew, passengers or baggage, directly from such foreign port or place, and had the same then on board at the Lazaretto.

SECT. 3. *And be it further enacted by the authority aforesaid,* That from and after the passing of this act, between the first day of June and the first day of October, no ship or vessel which shall be laden with, or have on board, any vegetables, fish or hides, shall be unladen at the port of Philadelphia, until a permit shall be applied for and obtained from the Board of Health. And if any master, captain, owner or owners, consignee or consignees, or other persons, shall presume to unlade from on board of any such ship or vessel, any vegetables, fish or hides, without first having applied for and obtained a permit from the Board of Health, every such master, captain, owner or owners, consignee or consignees, or other person, so offending, shall pay a fine not exceeding five hundred dollars, to be recovered and appropriated as is directed in the act to which this is a supplement.

SECT. 4. *And be it further enacted by the authority aforesaid,* That from and after the passing of this act, between the first day of June and the first day of October, within forty-eight hours after the discharge of the cargo of every ship or vessel at the port of Philadelphia, it shall be the duty of the captain or master, owner or owners, consignee or consignees, and other person, having the direction of the discharge of the same, under the penalty of one hundred dollars, to be recovered and appropriated as by the act to which this is a supplement is directed, to give, or cause to be given, to the Board of Health, notice that the same cargo is discharged, and to permit and suffer

the Board of Health, by themselves or by their lawful agent by them for that purpose appointed, to examine the condition of the hold, ballast and limbers of such ship or vessel. And if the Board of Health shall deem it for the safety and health of the city of Philadelphia, they are hereby authorised and empowered to designate a proper place to which the said ship or vessel shall be taken, and that her hold, ballast and limbers shall there be cleansed and purified, or at the expense of such captain or master, owner or owners, consignee or consignees, or other person, having the direction of the discharge of the cargo, to send, or cause to be sent, such ship or vessel to a proper place, and have her hold, ballast and limbers cleansed and purified.

SECT. 5. *And be it further enacted by the authority aforesaid,* That from and after the passing of this act, between the first day of June and the first day of October, no person or persons shall, under the penalty of fifty dollars, to be recovered and appropriated as is directed by the act to which this is a supplement, be permitted to store, or keep in any one house, store, cellar or other inclosure, a greater quantity than one hundred bushels of vegetables which are in themselves of a perishable nature, without a permit from the Board of Health, which permit shall be granted for a limited time therein expressed, and may be renewed from time to time by the Board of Health.

JOHN GILMORE,
Speaker of the House of Representatives.

PHILIP S. MARKLEY,
Speaker of the Senate.

APPROVED, April 2d, 1821.

JOSEPH HIESTER.



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